

25STCV25221 25STCV25221

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV25221 Hearing Date: July 21, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July 21, 2026 TRIAL

DATE: Not set

CASE: Priscilla Solis v. Del Taco, LLC, et al.

CASE NO.: 25STCV25221

PLAINTIFF'S

AMENDED MOTION TO COMPEL FURTHER ANSWERS BY DEFENDANT DEL TACO, LLC, TO
PLAINTIFF'S FORM INTERROGATORIES –

GENERAL,

SET ONE; FORM INTERROGATORIES – EMPLOYMENT LAW, SET ONE; AND SPECIAL INTERROGATORIES,
SET ONE

PLAINTIFF'S

MOTION TO COMPEL FURTHER ANSWERS BY DEFENDANT DEL

TACO,

LLC, TO PLAINTIFF'S REQUEST FOR ADMISSIONS, SET ONE

PLAINTIFF'S

MOTION TO COMPEL DEFENDANT DEL TACO, LLC'S COMPLIANCE WITH PLAINTIFF'S DEMAND
FOR PRODUCTION, SET ONE

MOVING PARTY: Plaintiff

Priscilla Solis

RESPONDING PARTY: Defendant Del

Taco, LLC

I. BACKGROUND

This is a FEHA and wrongful termination action. On May 29 and June 1, 2026, Plaintiff, Priscilla Solis, filed motions to compel Defendant, Del Taco, LLC, to provide (1) further answers to Plaintiff's first set of Form Interrogatories—General, Form Interrogatories—Employment Law, Special Interrogatories, (2) further answers to Request for Admissions, Set One, and (3) to comply with Plaintiff's Demand for Production, Set One. Plaintiff requests sanctions against Defendant and its counsel of record.

On June 16, 2026, Defendant filed oppositions to the motion to compel further answers to the interrogatories and motion to compel compliance.

Defendant did not file an opposition to the motion to compel further answers to the admissions requests.

On July 14, 2026, Plaintiff filed replies.

III. DISCUSSION

A. Motions to Compel

Further

Plaintiff

moves for further responses to her first set of Form Interrogatories-General, Form Interrogatories-Employment, and Special Interrogatories. Defendant argues the motions should be denied because Defendant served verified, supplemental responses on May 28 and 29, 2026. Because some, if not all, further responses were provided prior to the filing of the motion, the court finds there is no dispute to resolve regarding the interrogatories. The motion to compel further responses to the interrogatories is DENIED. The court proceeds to consider Plaintiff's motion to compel further responses to the

admissions request.

1. Legal Standard

Under Code of Civil Procedure section 2033.290, parties may move for a further response to admissions request where an answer to the discovery requests are evasive or incomplete or where an objection is without merit or too general. 2033.290(c)(1) 2033.290(c)(2)

2033.290(c)(3)

Notice of the motions must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. 2033.290(c)(4) (Code Civ. Proc., § 2033.290(c).) 2033.290(c)(5)

2033.290(c)(6)

California Rules of Court, rule 3.1345(a)(3) requires that all motions for responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. 3.1345(a)(3)

3.1345(a)(4)

2.

Application

Plaintiff seeks a further response to Request for Admission Nos. 1 and 8.

The motion is GRANTED.

Defendant's responses are evasive, incomplete, and/or nonresponsive. Further responses are warranted.

3.

Monetary Sanctions

Code of Civil Procedure section 2033.030 is a general statute authorizing the Court to impose discovery sanctions for "misuse of the discovery process," which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and

without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.)

If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.

Sanctions shall be awarded against any party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2033.290(d).)

Here, sanctions are warranted.

Defendant did not provide Code-compliant response. Further, Defense counsel does not show it did not counsel the discovery abuse.

Accordingly, sanctions are imposed against Defendant and its counsel of record in the sum of \$450.

B. Motion to Compel Compliance

Defendant argues the motion is moot because it served its document production on June 12, 2026. Defendant is mistaken. Serving further responses, or complying with its statement of compliance, during the pendency of a motion does not divest the court of authority to rule on the motion. (See, e.g., *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 406.)

Nevertheless, given Plaintiff's silence on the sufficiency of Defendant's belated document production, the court proceeds only to consider Plaintiff's request for monetary sanctions. Further, because Defendant did not serve the document production until

after Plaintiff filed this motion, and well after the date Defendant agreed to serve the production, the court finds sanctions are warranted. Accordingly, sanctions are imposed against Defendant and its counsel of record in the sum of \$450.

IV. DISPOSITIONS

The motion
to compel further responses to Plaintiff's first set of interrogatories is Denied.

The motion
to compel further responses to Plaintiff's Request for Admissions, Set One, is
Granted. Defendant is ordered to serve
further, verified responses to this discovery request within 15 days of this
order.

The motion
to compel compliance is Denied as Moot.

Defendant and its counsel of record are ordered to pay,
jointly and severally, in the total sum of \$900, within 15 days of this order.

Moving
party to give notice, unless waived.

Dated: July 21, 2026

Brock T. Hammond

Judge of the
Superior Court